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TITLE 5—ADMINISTRATIVE PERSONNEL

Chapter I—Civil Service Commission

PART 6—EXCEPTIONS FROM THE COMPETITIVE SERVICE

POST OFFICE DEPARTMENT

Effective upon publication in the FEDERAL REGISTER, the position listed below is excepted from the competitive service under Schedule C.

§ 6.309 *Post Office Department.*

* * *

(c) *Bureau of Transportation.* (1) Information specialist.

(R. S. 1753, sec. 2, 22 Stat. 403; 5 U. S. C. 631, 633. E. O. 10440, March 31, 1953, 18 F. R. 1823)

UNITED STATES CIVIL SERVICE COMMISSION,
[SEAL] WM. C. HULL,
Executive Assistant.

[F. R. Doc. 53-6104; Filed, July 9, 1953; 8:50 a. m.]

TITLE 6—AGRICULTURAL CREDIT

Chapter I—Farm Credit Administration, Department of Agriculture

Subchapter F—Banks for Cooperatives

[FCA Order 577]

PART 70—LOAN INTEREST RATES AND SECURITY

INCREASE IN INTEREST RATE; ST. LOUIS AND HOUSTON BANKS FOR COOPERATIVES

Effective August 1, 1953, the rates of interest which shall be charged by the St. Louis Bank for Cooperatives on loans, as specified in Part 70, Chapter I, Title 6, Code of Federal Regulations, are hereby changed as follows:

1. In § 70.4, change to 3½ per centum per annum.

2. In § 70.5, change to 3¼ per centum per annum.

3. In § 70.7, change to 4½ per centum per annum.

And the rates of interest which shall be charged by the Houston Bank for Cooperatives on loans, as specified in said part are hereby changed as follows:

1. In § 70.4, change to 3½ per centum per annum.

2. In § 70.5, change to 3¼ per centum per annum.

3. In § 70.7, change to 4¼ per centum per annum.

(Sec. 8, 46 Stat. 14, as amended; 12 U. S. C. 1141f)

A. T. ESGATE,
Acting Governor.

[F. R. Doc. 53-6108; Filed, July 9, 1953; 8:51 a. m.]

TITLE 24—HOUSING AND HOUSING CREDIT

Subtitle A—Office of the Administrator, Housing and Home Finance Agency

PART 1—TIME FOR DISPOSITION OF LANHAM ACT HOUSING

Purpose. Pursuant to the delegation of authority to the Housing and Home Finance Administrator under Executive Order 10462, dated June 19, 1953 (18 F. R. 3613) to perform the functions vested in the President by section 611 of the act entitled "An act to expedite the provision of housing in connection with national defense and for other purposes," approved October 14, 1940, as amended (hereinafter called the act), and having determined, after considering the needs of national defense and the effect of the extensions hereinafter provided for upon the general housing situation and the national economy, that such extensions are in the public interest, it is hereby ordered as follows:

Sec.
1.1 Temporary housing.
1.2 Permanent housing.
1.3 Definitions.
1.4 Repealer.

AUTHORITY: §§ 1.1 to 1.4 issued under sec. 11, 54 Stat. 1128; 42 U. S. C. and Sup. 1548. E. O. 10462, June 19, 1953 (18 F. R. 3613).

§ 1.1 *Temporary housing.* (a) The date under subsection (c) of section 601 of the act by which requests for transfer and relinquishment of temporary housing must be filed under subsections (a), (b), (g), and (h) of that section shall be June 30, 1953.

(b) The date under subsection (c) of section 601 of the act by which all conditions to relinquishments or transfers pursuant to requests made under subsections (a), (b), (g), and (h) of that section must be complied with shall be December 31, 1953, or six months after

(Continued on p. 4045)

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FEDERAL REGISTER

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(For use during 1953)

The following Supplements are now available:

Title 6 ($1.50); Title 14: Part 400–end (Revised Book) ($3.75); Title 32: Parts 1–699 ($0.75); Title 38 ($1.50); Title 43 ($1.50); Title 46: Part 146–end ($2.00)

Previously announced: Title 3 ($1.75); Titles 4–5 ($0.55); Title 7: Parts 1–209 ($1.75), Parts 210–899 ($2.25), Part 900–end (Revised Book) ($6.00); Title 8 (Revised Book) ($1.75); Title 9 ($0.40); Titles 10–13 ($0.40); Title 15 ($0.75); Title 16 ($0.65); Title 17 ($0.35); Title 18 ($0.35); Title 19 ($0.45); Title 20 ($0.60); Title 21 ($1.25); Titles 22–23 ($0.65); Title 24 ($0.65); Title 25 ($0.40); Title 26: Parts 80–169 ($0.40), Parts 170–182 ($0.65), Parts 183–299 ($1.75); Title 26: Part 300–end, Title 27 ($0.60); Titles 28–29 ($1.00); Titles 30–31 ($0.65); Title 32: Part 700–end ($0.75); Title 33 ($0.70); Titles 35–37 ($0.55); Title 39 ($1.00); Titles 40–42 ($0.45); Titles 44–45 ($0.60); Title 46: Parts 1–145 (Revised Book) ($5.00); Titles 47–48 ($2.00); Title 49: Parts 1–70 ($0.50), Parts 71–90 ($0.45), Parts 91–164 ($0.40), Part 165–end ($0.55); Title 50 ($0.45)

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Superintendent of Documents, Government Printing Office, Washington 25, D. C.

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the date of the release from the disposition suspension order, whichever is the later.

(c) The date under section 604 of the act after which vacancies occurring or continuing in temporary housing remaining under the jurisdiction of the Housing and Home Finance Administrator may be filled only by transfer of tenants of other accommodations in the same locality being removed as required by the act, shall be (1) where a transfer has not been requested by a local body, June 30, 1953, or thirty days after the date of the release from the disposition suspension order, whichever is the later, and (2) where a transfer has been requested by a local body, December 31, 1953, or six months after the date of the release from the disposition suspension order, whichever is the later.

(d) The date under section 604 of the act by which all tenants must be notified to vacate temporary housing remaining under the jurisdiction of the Housing and Home Finance Administrator shall be (1) where not requested for transfer to a local body, July 31, 1953, or thirty days after the date of the release from the disposition suspension order, whichever is the later, and (2) where requested for transfer to a local body, the date thirty days after the date prescribed in paragraph (b) of this section.

(e) The date under section 604 of the act required to be stipulated in such notices to vacate prior to which the premises must be vacated shall be not later than six months after the date prescribed in paragraph (d) of this section as the date by which such notices shall be given: *Provided*, That any dates stipulated in notices to vacate heretofore given under the statute or Executive orders which are different from those prescribed in this part need not be changed. The date promptly after which actions must be instituted to evict any tenants remaining in such temporary housing shall be the date stipulated in such notices prior to which the premises must be vacated.

§ 1.2 *Permanent housing.* (a) The date under section 606 (a) (1) of the act on or before which conveyance of certain housing projects must be requested by the governing body of the municipality or county and on or before which the need for low-rent housing must be demonstrated to the satisfaction of the Administrator shall be June 30, 1953.

(b) The date under section 606 (a) (3) of the act on or before which an agreement between the governing body of a municipality or county and a public housing agency satisfactory to the Public Housing Administration must be entered into, and on or before which a public housing agency must enter into an agreement with the Public Housing Administration for the administration of any project requested under section 606 (a) of the act, shall be December 31, 1953.

§ 1.3 *Definitions.* As used in this part the term "date of release from the disposition suspension order" means the date on which the local body is notified that a determination has been made by the Administrator that housing which had been previously suspended from disposition because of needs of national defense, is no longer required in connection with national defense activities; and the term "local body" means a State or political subdivision thereof, local housing authority, local public agency, nonprofit organization or educational institution referred to in section 601 of the act, eligible to request a transfer of temporary housing described in that section.

§ 1.4 *Repealer.* The date fixed by this part for the performance of any act shall take precedence over and supersede the date fixed for any similar action in Executive Orders 10284 (16 F. R. 8971), 10339 (17 F. R. 3012), 10395 (17 F. R. 8449), and 10425 (18 F. R. 405).

Effective as of the 30th day of June, 1953.

ALBERT M. COLE,
Housing and Home Finance Administrator.

[F. R. Doc. 53-6075; Filed, July 9, 1953; 8:45 a. m.]

Chapter II — Federal Housing Administration, Housing and Home Finance Agency

Subchapter D—Multifamily and Group Housing Insurance

PART 241—COOPERATIVE HOUSING INSURANCE; ELIGIBILITY REQUIREMENTS FOR PROJECT MORTGAGE

ELIGIBLE MORTGAGES; SUPERVISION OF MORTGAGORS

1. Section 241.4 (c) is hereby amended to read as follows:

§ 241.4 *Eligibility for insurance.* * * *

(c) The Commissioner may, if he finds that, because of higher costs prevailing in the Territory of Alaska or in Guam or in Hawaii, it is not feasible to construct dwellings on property located in Alaska or in Guam or in Hawaii without sacrifice of sound standards of construction, design, or livability, within the limitations as to maximum mortgage amounts provided in paragraph (a) or (b) of this section, prescribe by regulation or otherwise with respect to dollar amount, a higher maximum for the principal obligation of mortgages covering property located in Alaska or in Guam or in Hawaii, in such amounts as he shall find necessary to compensate for such higher costs but not to exceed, in any event, the maximum otherwise applicable by more than one-half thereof.

2. Section 241.7 is hereby amended to read as follows:

§ 241.7 *Interest rate.* The mortgage shall bear interest, not exceeding 4¼ percent per annum on the amount of the principal obligation outstanding at any time, as may be agreed upon between the mortgagor and mortgagee. All charges made in connection with the mortgage transaction shall be subject to the approval of the Commissioner.

3. Section 241.17 is hereby amended to read as follows:

§ 241.17 *In general.* (a) In the case of an eligible mortgagor which is regulated or restricted for the purposes and in the manner provided in § 241.16 (b) or in the case of any project covering property located in Alaska or in Guam or in Hawaii, liens inferior to the lien of the insured mortgage may be allowed against properties of such mortgagors: *Provided*, That the mortgagor in any such case, must have initial funds which may be considered in lieu of the equity required of other mortgagors, and such funds (which may be in the form of Government loans, grants, or subsidies or in other form) if sufficient in amount, will be considered satisfactory provided they do not create a lien against the property prior to that of the insured mortgage.

* * * * *

(Sec. 211, 52 Stat. 23; 12 U. S. C. 1715b. Interpret or apply sec. 114, 64 Stat. 54; 12 U. S. C. 1715e)

Issued at Washington, D. C., July 3, 1953.

GUY T. O. HOLLYDAY,
Federal Housing Commissioner.

[F. R. Doc. 53-6100; Filed, July 9, 1953; 8:49 a. m.]

PART 242—COOPERATIVE HOUSING INSURANCE; ELIGIBILITY REQUIREMENTS FOR INDIVIDUAL MORTGAGES COVERING PROPERTIES RELEASED FROM LIEN OF PROJECT MORTGAGE

RATE OF INTEREST

Section 242.9 is hereby amended to read as follows:

§ 242.9 *Rate of interest.* The mortgage may bear interest at such rate as may be agreed upon between the mortgagee and mortgagor but in no case shall such interest be in excess of 4½ percent per annum computed on unpaid balances.

(Sec. 211, 52 Stat. 23; 12 U. S. C. 1715b. Interprets or applies sec. 114, 64 Stat. 54; 12 U. S. C. 1715e)

Issued at Washington, D. C., July 3, 1953.

GUY T. O. HOLLYDAY,
Federal Housing Commissioner.

[F. R. Doc. 53-6101; Filed, July 9, 1953; 8:49 a. m.]

Subchapter M—Military Housing Insurance

PART 292—ELIGIBILITY REQUIREMENTS FOR MILITARY HOUSING INSURANCE

ELIGIBLE MORTGAGES AND MORTGAGORS; INSURANCE OF ADVANCES DURING CONSTRUCTION

1. Section 292.13 is hereby amended to read as follows:

§ 292.13 *Interest rate.* The mortgage may bear interest at such rate as may be agreed upon between the mortgagee and the mortgagor, but in no case shall such interest rate be in excess of 4¼ percent per annum. Interest shall be payable only on principal outstanding and shall be payable in monthly instalments.

2. Section 292.23 is hereby amended to read as follows:

§ 292.23 *Eligible mortgages in Alaska, in Guam or in Hawaii.* The Commissioner may, if he finds that, because of higher costs prevailing in the Territory of Alaska, in Guam or in Hawaii, it is not feasible to construct dwellings on property located in Alaska, in Guam or in Hawaii without sacrifice of sound standards of construction, design, or livability, within the limitations as to maximum mortgage amounts provided in § 292.11, prescribe by regulation or otherwise with respect to dollar amount, a higher maximum for the principal obligation of mortgages covering property located in Alaska, in Guam or in Hawaii, in such amounts as he shall find necessary to compensate for such higher costs but not to exceed, in any event, the maximum otherwise applicable by more than one-half thereof.

3. Section 292.29 is hereby amended to read as follows:

§ 292.29 *Eligible mortgagors in Alaska, in Guam or in Hawaii.* The Commissioner may, in his discretion, waive the requirements set forth in § 292.25 in the case of any project covering property located in Alaska, in Guam or in Hawaii: *Provided,* That the mortgagor in any such case, must have initial funds which may be considered in lieu of the equity required of other mortgagors, and such funds (which may be in the form of Government loans, grants, or subsidies or in other form) if sufficient in amount, will be considered satisfactory provided they do not create a lien against the property prior to that of the insured mortgage. Liens inferior to the lien of the insured mortgage may be allowed against properties of such mortgagors.

4. Part 292 is hereby amended by adding the following new § 292.44a:

§ 292.44a *Mortgagor's agreement and certification as to costs.* (a) Prior to initial endorsement for insurance the mortgagor, mortgagee and the Commissioner shall enter into an agreement (in form and content satisfactory to the Commissioner) under which the mortgagor shall agree to execute the certificate required pursuant to paragraph (c) of this section, and comply with the obligation of the mortgagor to reduce the amount of the mortgage as set forth in paragraph (b) of this section. Such agreement shall also disclose the relationship, if any, between the mortgagor, or any of its officers, directors or stockholders, with the general contractor selected to perform the construction, and the mortgagor shall agree that the execution of the certificate required pursuant to paragraph (c) of this section may be accepted by the Commissioner as evidence that no change in such disclosed relationship has occurred during construction and prior to the execution of such certificate.

(b) The agreement required under paragraph (a) of this section shall obligate the mortgagor to reduce the amount of the mortgage by the amount, if any, by which the proceeds of the mortgage loan exceed the actual cost, as disclosed by the certificate required by paragraph (c) of this section, of the physical improvements on the mortgaged property or project (exclusive of off-site public utilities and streets and of organization and legal expenses).

(c) The certificate required under this section shall be executed by the mortgagor after completion of the physical improvements on the mortgaged property and prior to the final endorsement of the mortgage, and shall be in such form as the Commissioner may prescribe.

(1) If the mortgagor establishes to the satisfaction of the Commissioner that no officer, director or stockholder of the mortgagor is also an officer, director or stockholder of the general contractor or in any manner has any financial interest in the general contractor, the amount of the construction contract will be accepted by the Commissioner as the amount of the actual cost of that part of said physical improvements represented by the work to be performed under such contract.

(2) In all such cases the required certificate shall be accompanied by a statement on a form prescribed by the Commissioner, setting forth the amount actually paid under the construction contract exclusive of any refunds, rebates or other payments to the mortgagor or for its account; together with an itemization of the cost of all other labor and materials and necessary services in connection with the construction of any physical improvements, which are in addition to the work to be performed under the construction contract, including, but not limited to, utilities within the boundaries of the property or project; architects' fees actually paid, no part of which has or will accrue to benefit of the mortgagor; taxes, interest and insurance during construction; and other miscellaneous charges incidental to construction and approved by the Commissioner; but excluding all kickbacks, rebates and normal trade discounts received in connection with the construction of that part of such physical improvements not representing work to be performed under the construction contract. The mortgagor shall keep and maintain adequate records of all costs of such construction not representing work to be performed under the construction contract and shall make such records available for examination upon request by the Commissioner.

(3) Unless the Commissioner is satisfied that no officer, director or stockholder of the mortgagor-corporation is an officer, director or stockholder of the general contractor and that no such officer, director or stockholder of the mortgagor-corporation has any financial interest in the general contractor, the contract or contracts entered into by the mortgagor for the construction of the project, shall provide for payment on the basis of the actual cost of the work to be performed, exclusive of all kickbacks, rebates and normal trade discounts, plus a fixed fee in a reasonable amount satisfactory to the Commissioner, but such contract or contracts shall further provide a maximum upset price and shall require the contractor under any such contract or contracts to keep and maintain adequate records of all costs, and to make such records available for examination upon request by the Commissioner.

(4) In all such cases the required certificate shall be accompanied by statements executed by the contractor and the mortgagor, on forms prescribed by the Commissioner, itemizing all actual costs of labor and materials and necessary services in connection with the construction of physical improvements, including, but not limited to, utilities within the boundaries of the property or project; architects' fees actually paid, no part of which has or will accrue to the benefit of the mortgagor; taxes, interest and insurance during construction; and other miscellaneous charges incidental to construction and approved by the Commissioner, but excluding all kickbacks, rebates and normal trade discounts received in connection with the construction of such physical improvements.

(5) Any agreement, undertaking, statement or certification required under this section shall specifically state that it is made, presented and delivered for the purpose of influencing an official action of the Federal Housing Administration and of the Federal Housing Commissioner and may be relied upon by the Commissioner as a true statement of the facts contained therein.

(Sec. 808, 63 Stat. 570; 12 U. S. C. 1748g)

Issued at Washington, D. C., July 3, 1953.

GUY T. O. HOLLYDAY,
Federal Housing Commissioner.

[F. R. Doc. 53-6102; Filed, July 9, 1953; 8:49 a. m.]

Subchapter O—National Defense Rental Housing Insurance

PART 296—ELIGIBILITY REQUIREMENTS FOR NATIONAL DEFENSE RENTAL HOUSING INSURANCE

ELIGIBLE MORTGAGES AND MORTGAGORS

1. Section 296.7 is hereby amended to read as follows:

§ 296.7 *Interest rate.* The mortgage shall bear interest, not exceeding 4¼ percent per annum, on the amount of the principal obligation outstanding at any time, as may be agreed upon between

the mortgagor and mortgagee. All charges made in connection with the mortgage transaction shall be subject to the approval of the Commissioner.

2. Section 296.11 is hereby amended to read as follows:

§ 296.11 *Soundness of project.* No mortgage shall be accepted for insurance unless the Commissioner finds that the property or project with respect to which the mortgage is executed is an acceptable risk in view of the needs of national defense, except that as to mortgages covering property located in Alaska, in Guam or in Hawaii no mortgage shall be accepted for insurance unless the Commissioner finds that the property or project is an acceptable risk giving consideration to the acute housing shortage in Alaska, in Guam or in Hawaii.

3. Section 296.17 is hereby amended to read as follows:

§ 296.17 *Eligible mortgages in Alaska, in Guam or in Hawaii.* The Commissioner may, if he finds that because of higher costs prevailing in the Territory of Alaska, in Guam or in Hawaii it is not feasible to construct dwellings on property located in Alaska, in Guam or in Hawaii without sacrifice of sound standards of construction, design, and livability, within the limitations as to maximum mortgage amounts provided in § 296.4, prescribe by regulation or otherwise, with respect to dollar amount, a higher maximum for the principal obligation of mortgages covering property located in Alaska, in Guam or in Hawaii, in such amounts as he shall find necessary to compensate for such higher costs but not to exceed, in any event, the maximum otherwise applicable by more than one-half thereof.

4. Section 296.19 (a) is hereby amended as read as follows:

§ 296.19 *Secondary liens.* * * *

(a) In the case of an eligible mortgagor which is regulated or restricted for the purposes and in the manner provided in § 296.22 (b), or in the case of any project covering property located in Alaska, in Guam or in Hawaii, liens inferior to the lien of the insured mortgage may be allowed against properties of such mortgagors: *Provided,* That the mortgagor in any such case must have initial funds which may be considered in lieu of the equity required of other mortgagors, and such funds (which may be in the form of Government loans, grants, or subsidies or in other form) if sufficient in amount, will be considered satisfactory provided they do not create a lien against the property prior to that of the insured mortgage.

* * * * *

(Sec. 907, 65 Stat. 301; 12 U. S. C. 1750f)

Issued at Washington, D. C., July 3, 1953.

GUY T. O. HOLLYDAY,
Federal Housing Commissioner.

[F. R. Doc. 53-6103; Filed, July 9, 1953; 8:50 a. m.]

TITLE 7—AGRICULTURE

Chapter VII—Production and Marketing Administration (Agricultural Adjustment), Department of Agriculture

[1023 (Cigar-Filler-54)-1]

PART 723—CIGAR-FILLER TOBACCO, AND CIGAR-FILLER AND BINDER TOBACCO

CIGAR-FILLER TOBACCO MARKETING QUOTA REGULATIONS, 1954-1955 MARKETING YEAR

Correction

In F. R. Document 53-5899, appearing in the issue for Saturday, July 4, 1953, at page 3822, make the following change:

In § 723.579, line 15, the word "available" should be inserted following the word "equipment".

PART 728—WHEAT

SUBPART—REGULATIONS PERTAINING TO FARM ACREAGE ALLOTMENTS FOR THE 1954 CROP OF WHEAT

DEFINITIONS

The amendments herein are issued under the Agricultural Adjustment Act of 1938, as amended, and are for the purpose of classifying counties as green manure, cover crop, or hay counties in drought-stricken counties designated as such by the President under Public Law 875, 81st Congress, and to provide for additional adjustment in base acreages in areas severely affected by flood or drought in 1952 and 1953.

Since the Agricultural Adjustment Act of 1938, as amended, requires the holding not later than July 24, 1953, of a referendum of wheat producers who will be subject to the marketing quotas proclaimed on the 1954 crop of wheat and requires, insofar as practicable, the mailing of notices of farm acreage allotments to farm operators prior to the date of the referendum, it is hereby found that compliance with the notice, procedure, and 30-day effective date provisions of section 4 of the Administrative Procedure Act is impracticable and contrary to the public interest. Therefore the amendments herein shall become effective upon filing with the Director, Division of Federal Register.

Section 728.411 is amended by amending subparagraph (5) of paragraph (k) and paragraph (l) to read as follows:

§ 728.411 *Definitions.* * * *

(k) * * *

(5) "Green manure, cover crop, and hay counties" means counties recommended by the appropriate State committees and approved by the Director as counties in which the use of wheat as green manure, cover crop, or hay is a normal farming practice, and counties designated in June 1953 and thereafter by the President as drought disaster counties under Public Law 875, 81st Congress.

(l) "Acreage indicated by cropland" means the number of acres computed by multiplying the cropland for a farm by the ratio of historical wheat acreage determined for a community or county pursuant to § 728.416 (a) to cropland for the community or county: *Provided,* That in counties designated by the State committee as counties materially affected by flood or drought in 1952 and 1953, the acreage indicated by cropland shall be computed by multiplying the cropland for a farm by the ratio of historical wheat acreage determined for a community or county to cropland for the community or county as determined under paragraphs (a) and (b) of § 728.116 pertaining to farm acreage allotments for the 1951 crop of wheat. County ratio determinations will be made subject to approval of the State committee.

* * * * *

(Sec. 375, 52 Stat. 66, as amended; 7 U. S. C. 1375. Interprets or applies sec. 301, 334, 52 Stat. 38, 53; 7 U. S. C. 1301, 1334)

Done at Washington, D. C., this 7th day of July 1953. Witness my hand and the seal of the Department of Agriculture.

[SEAL] E. T. BENSON,
Secretary of Agriculture.

[F. R. Doc. 53-6107; Filed, July 9, 1953; 8:50 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter II—Corps of Engineers, Department of the Army

PART 207—NAVIGATION REGULATIONS

DELAWARE BAY ENTRANCE

Pursuant to the provisions of section 7 of the River and Harbor Act of August 8, 1917 (40 Stat. 266; 33 U. S. C. 1), § 207.105 is hereby prescribed establishing and governing the use of a naval restricted area in the waters of Delaware Bay off Cape Henlopen at the entrance to Delaware Bay, as follows:

§ 207.105 *Delaware Bay off Cape Henlopen, Del.; naval restricted area*—(a) *The area.* Beginning at a point on the south shore of Delaware Bay at longitude 75°06'12"; thence to latitude 38°47'25", longitude 75°06'20"; thence to latitude 38°47'48", longitude 75°06'00"; thence to latitude 38°50'43", longitude 75°02'11"; thence to latitude 38°49'16", longitude 74°59'35"; thence to a point on the shore at latitude 38°46'09"; thence northwesterly and southwesterly along the shore at Cape Henlopen to the point of beginning.

(b) *The regulations.* (1) Anchoring, trawl fishing, crabbing, dragging, grappling, and towing with hawser on bottom are prohibited in the area and no object attached to a vessel shall be placed on or near the bottom.

(2) This section does not apply to anchored floating navigational aids or to placement or removal of such aids by the Coast Guard.

(3) This section does not apply to vessels engaged in commercial or pleasure boat fishing provided anchors, trawls, and ground tackle are not used.

(4) The regulations in this section shall be enforced by the Commandant,

Fourth Naval District, and such agencies as he may designate.

[Regs., June 29, 1953, 800.2121 (Delaware Bay)-ENGWO] (40 Stat. 266; 33 U. S. C. 1)

[SEAL] WM. E. BERGIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 53-6097; Filed, July 9, 1953; 8:48 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 903]

ALASKA

RESERVING CERTAIN PUBLIC LANDS AS AIR-NAVIGATION SITE WITHDRAWAL NO. 261, AND PARTIALLY REVOKING EXECUTIVE ORDER NO. 5214 OF OCTOBER 30, 1929

By virtue of the authority vested in the President by section 1 of the act of June 4, 1897 (30 Stat. 34, 36; 16 U. S. C. 473) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F. R. 4831) and section 4 of the act of May 24, 1928 (45 Stat. 729; 49 U. S. C. 214) it is ordered as follows:

1. Subject to valid existing rights, the following-described tract of public land within the boundaries of the Tongass National Forest, Alaska, is hereby withdrawn from all forms of appropriation under the public-land laws and reserved for the use of the Civil Aeronautics Administration, Department of Commerce, in the maintenance of air-navigation facilities, the reservation to be known as Air-Navigation Site Withdrawal No. 261:

Beginning at a point 300 feet south of the shore line of Monti Bay on Meridian 139°44' W., from which U. S. L. M. No. 179, latitude 59°32'51" N., longitude 139°43'50" W., bears N. 51°46'30" E., 1167.2 feet, thence by metes and bounds:

South, 4485.5 feet to parallel 59°32' N.,
West, 2640.0 feet along parallel 59°32' N.
North, 4000.0 feet, approximately, to shore line of Monti Bay,
Northeasterly, 2900.0 feet, approximately, along shore line of Monti Bay to Meridian 139°44' W.,
South 300.0 feet to point of beginning.

The tract described contains approximately 266 acres.

(a) The reservation made by this order shall take precedence over but shall not otherwise affect the proclamation of February 16, 1909 (35 Stat. 2226) enlarging the Tongass National Forest. It is intended that the land reserved by paragraph 1 shall be returned to the administration of the Department of Agriculture, or any other Federal agency, according to its respective interests then of record, when the land is no longer needed for the purpose for which it is reserved.

2. Executive Order No. 5214 of October 30, 1929, withdrawing certain areas of land and water in the Territory of Alaska from settlement, location, sale, or entry and reserving them for the exclusive use of the United States Navy Department for naval purposes, is hereby revoked so far as it affects the following-described areas designated therein as Areas (B) and (C), respectively:

(B) *The Port Graham Area.* All that area lying between latitude 59°19' North and 59°24' North and longitude 151°46' West and 151°56' West.

(C) *The Yakutat Bay Area.* All that area lying between latitude 59°32' North and 59°36' North and longitude 139°44' West and 139°50' West.

The areas described contain approximately 34,240 acres.

A portion of the lands within the Yakutat Bay Area is subject to the said proclamation of February 16, 1909, enlarging the Tongass National Forest.

3. As to the lands reserved by paragraph 1, this order shall be effective immediately. As to the lands released by paragraph 2, this order shall become effective at 10:00 a. m. on the 35th day after its date, at which time the unappropriated, unreserved, and unsurveyed public lands so released shall be opened only to settlement under the homestead laws or under the Alaska Home Site act of May 26, 1934 (48 Stat. 809; 48 U. S. C. 461), and to those forms of appropriation only by qualified veterans of World War II for whose services recognition is granted by the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, and by other qualified persons entitled to credit for service under the said act. Commencing at 10:00 a. m. on the 126th day after the date of this order, any of such lands not settled upon by veterans or other persons entitled to credit for service shall become subject to settlement and other forms of appropriation by the public generally in accordance with appropriate laws and regulations.

4. Applications for these lands, which shall be filed in the Land Office, Bureau of Land Management, Anchorage, Alaska, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations to the extent that such regulations are applicable. Applications under the home-site or homestead laws shall be governed by the regulations contained in Parts 64, 65, and 66 of Title 43 of the Code of Federal Regulations.

5. Inquiries concerning these lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Anchorage, Alaska.

ORME LEWIS,
Assistant Secretary of the Interior.

JULY 3, 1953.

[F. R. Doc. 53-6080; Filed, July 9, 1953; 8:45 a. m.]

[Public Land Order 904]

OREGON

RESERVING CERTAIN PUBLIC LANDS IN CONNECTION WITH NORTH FORK BIG GAME WINTER RANGE

Whereas the act of September 2, 1937 (50 Stat. 917; 16 U. S. C. 669–669j) provides for Federal aid to States in wildlife-restoration projects; and

Whereas the State of Oregon has established a Federal-aid wildlife-restoration project and has acquired title to certain lands and wildlife control over other lands in Grant, Morrow, and Umatilla Counties, Oregon, which are administered by the State of Oregon through its Game Commission as the North Fork Big Game Winter Range; and

Whereas certain intermingled public lands possess wildlife value and could be administered advantageously in connection with the project; and

Whereas the act of March 10, 1934, as amended by the act of August 14, 1946 (48 Stat. 401; 60 Stat. 1080; 16 U. S. C. 661–661c) authorizes the Secretary of the Interior to cooperate with Federal, State, and other agencies in developing a nation-wide program of wildlife conservation and rehabilitation;

Now, therefore, by virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F. R. 4831) it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Grant, Morrow, and Umatilla Counties, Oregon, are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining laws but not the mineral-leasing laws, and reserved under the jurisdiction of the Department of the Interior under such conditions as may be prescribed by the Secretary of the Interior, for use by the Game Commission of the State of Oregon in connection with the North Fork Big Game Winter Range:

WILLAMETTE MERIDIAN

T. 7 S., R. 28 E.,
Sec. 1, NE¼SW¼;
Sec. 12, NE¼NE¼.
T. 6 S., R. 29 E.,
Sec. 31, NE¼NE¼, lots 1, 5, 6, 8, 12, 13;
Sec. 33, N½NW¼;
Sec. 34, W½NE¼, NE¼NW¼;
Sec. 35, E½NE¼, NW¼NW¼.
T. 7 S., R. 29 E.,
Sec. 1, S½NE¼, SE¼NW¼, NE¼SW¼, SW¼SW¼;
Sec. 2, SW¼, NW¼SE¼;
Sec. 3, lot 4, SW¼NW¼, SW¼;
Sec. 5, S½SE¼;
Sec. 6, S½SE¼;
Sec. 7, N½NE¼, SE¼NE¼, lots 1, 2, 11, 14, 15, 22, 23, 24, NE¼SE¼;
Sec. 8, NW¼NW¼.
T. 6 S., R. 30 E.,
Sec. 26, E½NW¼, SW¼NW¼, NW¼SW¼;
Sec. 32, SE¼SW¼;
Sec. 33, SW¼NE¼;
Sec. 34, NW¼, NE¼SW¼;
Sec. 35, NE¼NE¼, N½SW¼, SW¼SW¼, SE¼SE¼.
T. 7 S., R. 30 E.,
Sec. 3, lots 1, 2, 3, S½NW¼;
Sec. 5, NW¼NE¼.
T. 6 S., R. 31 E.,
Sec. 29, NE¼NW¼, SE¼SW¼;
Sec. 30, lot 4;
Sec. 31, NE¼NE¼.

The areas described aggregate 3,085.29 acres.

ORME LEWIS,
Assistant Secretary of the Interior.

JULY 6, 1953.

[F. R. Doc. 53-6077; Filed, July 9, 1953; 8:45 a. m.]

TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

PART 17—LIST OF AREAS

FEDERAL AID AREAS

EDITORIAL NOTE: For an addition to the tabulation in § 17.7, see Public Land Order 904 in Title 43, Chapter I, Appendix, *supra*, reserving certain public lands in Oregon in connection with the North Fork Big Game Winter Range.

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR Part 957]

HANDLING OF IRISH POTATOES GROWN IN CERTAIN DESIGNATED COUNTIES IN IDAHO AND MALHEUR COUNTY, OREGON

LIMITATION OF SHIPMENTS

Notice is hereby given that the Secretary of Agriculture is considering amendments to § 957.310 *Limitation of Shipments*, which was published in the FEDERAL REGISTER (18 F. R. 3380) on June 13, 1953, by the addition of interpretative rules, hereinafter set forth. Such interpretative rules were recommended by the Idaho-Eastern Oregon Potato Committee established pursuant to Marketing Agreement No. 98 and Order No. 57, as amended (7 CFR Part 957), regulating the handling of Irish potatoes grown in certain designated counties in Idaho and Malheur County, Oregon, issued under the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.).

The proposed amendment provides an interpretation of the term "producer" for purposes of determining who may handle a limited amount of immature potatoes under the exception contained in § 957.310 (b) (3) to the maturity requirements set forth in such subparagraph. The interpretative rule is necessary to clarify for handlers the limitations of such exception, to assist the committee in administering § 957.310, and to aid in the enforcement of compliance with Order No. 57, as amended, and the regulations issued thereunder.

Consideration will be given any data, views, or arguments pertaining thereto mailed in triplicate to the Director, Fruit and Vegetable Branch, Production and Marketing Administration, United States Department of Agriculture, Washington 25, D. C., not later than 15 days following publication of this notice in the FEDERAL REGISTER.

The proposed amendment and interpretative rules are as follows:

Delete § 957.310 (b) (5) and substitute therefor the following:

(5) For the purpose of determining who shall be entitled to the exception set forth in subparagraph (3) of this paragraph from the maturity requirements contained in such subparagraph:

(i) "Producer" means any individual, partnership, corporation, association, landlord-tenant crop sharing relationship, community property ownership, or any other business unit engaged in the production of potatoes for market.

(ii) It is intended that each 200 hundredweight exception to the aforesaid maturity requirements shall apply only to the potatoes grown on each farm of a producer.

(6) The terms used in this section shall have the same meaning as when used in Order No. 57, as amended, and the aforementioned grades and sizes shall have the same meanings assigned these terms in the U. S. Standards for Potatoes (§ 51.366 of this title), including the tolerances set forth therein.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. and Sup. 608c)

Done at Washington, D. C., this 7th day of July 1953.

S. R. SMITH,
Director, Fruit and Vegetable Branch, Production and Marketing Administration.

[F. R. Doc. 53-6109; Filed, July 9, 1953; 8:51 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[47 CFR Part 3]

[Docket No. 10509]

STANDARD BROADCAST STATIONS

NOTICE OF EXTENSION OF TIME FOR FILING COMMENTS

In the matter of amendment of section 1 of the Standards of Good Engineering Practice Concerning Standard Broadcast Stations, Docket No. 10509.

1. On May 13, 1953, the Commission issued a Notice of Proposed Rule Making (FCC 53-579) in the above-entitled matter which specified that comments were to be filed on or before June 29, 1953. The Storer Broadcasting Company has requested the time for filing comments be extended until July 10, 1953, to permit the filing of its comments which have been detained for reasons beyond its control.

2. In view of the above request, notice is hereby given that time for filing comments in the above-entitled matter is extended to July 10, 1953. Replies to such comments may be filed on or before July 20, 1953.

Adopted: July 1, 1953.

Released: July 2, 1953.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 53-6142; Filed, July 9, 1953; 10:57 a. m.]

NOTICES

FEDERAL POWER COMMISSION

[Docket Nos. G-2065, G-2066]

SOUTHERN NATURAL GAS CO. AND CHATTAHOOCHEE NATURAL GAS CO.

ORDER CONSOLIDATING PROCEEDINGS AND FIXING DATE OF HEARING

On September 12, 1952, and as amended on February 2, 1953, Southern Natural Gas Company (Southern Natural) filed at Docket No. G-2065 an application for a certificate of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing the construction and operation of certain measurement facilities for the purpose of selling and delivering natural gas to Chattahoochee Natural Gas Company (Chattahoochee). The application is on file with the Commission and open to public inspection, public notice thereof having been given, including publication in the FEDERAL REGISTER on November 6, 1952 (17 F. R. 10,089).

On September 12, 1952, and as amended on January 7, 1953, Chattahoochee filed at Docket No. G-2066 an application for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, authorizing the construction and operation of natural-gas transmission facilities for the purpose of selling the natural gas purchased from Southern Natural to the communities of Dalton, Lafayette, Summerville, and Trion, Georgia, for distribution therein. The application is on file with the Commission and open to public inspection. Public notice thereof having been given, including publication in the FEDERAL REGISTER on September 27, 1952 (17 F. R. 8638).

The Commission finds: The issues presented by the aforementioned applications appear to be interrelated, and it is appropriate and necessary to carry out the provisions of the Natural Gas Act and the public interest requires that said applications be consolidated for purpose of hearing.

The Commission orders:

(A) The proceeding at Docket Nos. G-2065 and G-2066 be consolidated for purpose of hearing.

(B) Pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7, 15 and 16 of the Natural Gas Act, and the Commission's

Rules of Practice and Procedure, a public hearing be held commencing on August 17, 1953 at 10:00 a. m., e. d. s. t., in the Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved and the issues presented by said applications.

(C) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) (18 CFR 1.8 and 1.37 (f)) of the Commission's rules of practice and procedure.

Adopted: July 2, 1953.

Issued: July 6, 1953.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 53-6081; Filed, July 9, 1953; 8:46 a. m.]

[Docket No. G-2156]

HOPE NATURAL GAS CO.

ORDER FIXING DATE OF HEARING

On April 15, 1953, Hope Natural Gas Company (Applicant), a West Virginia corporation with its principal place of business in Clarksburg, West Virginia, filed an application for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act authorizing the construction and operation of certain natural-gas facilities subject to the jurisdiction of the Commission as described in the application on file with the Commission and open to public inspection.

The Commission finds: This proceeding is a proper one for disposition under the provisions of § 1.32 (b) (18 CFR 1.32 (b)) of the Commission's rules of practice and procedure, Applicant having requested that its application be heard under the shortened procedure provided by the aforesaid rule for noncontested proceedings, and no request to be heard, protest or petition having been filed subsequent to the giving of due notice of the filing of the application, including publication in the FEDERAL REGISTER on May 2, 1953 (18 F. R. 2594).

The Commission orders:

(A) Pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing be held on July 23, 1953, at 9:45 a. m., e. s. t., in the Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved and the issues presented by the application herein: *Provided, however,* That the Commission may, after a noncontested hearing dispose of the proceeding pursuant to provisions of § 1.32 (b) of the Commission's rules of practice and procedure.

(B) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) (18 CFR 1.8 and 1.37 (f)) of the said rules of practice and procedure.

Adopted: July 2, 1953.

Issued: July 6, 1953.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 53-6082; Filed, July 9, 1953; 8:46 a. m.]

DEPARTMENT OF THE INTERIOR

Office of the Secretary

ALASKA

NOTICE FOR FILING OBJECTIONS TO ORDER[1] RESERVING CERTAIN PUBLIC LANDS AS AIR-NAVIGATION SITE WITHDRAWAL NO. 261, AND PARTIALLY REVOKING EXECUTIVE ORDER NO. 5214 OF OCTOBER 30, 1929

For a period of 60 days from the date of publication of the above entitled order, persons having cause to object to the terms thereof may present their objections to the Secretary of the Interior. Such objections should be in writing, should be addressed to the Secretary of the Interior, and should be filed in duplicate in the Department of the Interior, Washington 25, D. C. In case any objection is filed and the nature of the opposition is such as to warrant it, a public hearing will be held at a convenient time and place, which will be announced, where opponents to the order may state their views and where the proponents of the order can explain its purpose, intent, and extent. Should any objection be filed, whether or not a hearing is held, notice of the determination by the Secretary as to whether the order should be rescinded, modified or let stand will be given to all interested parties of record and the general public.

ORME LEWIS, *Assistant Secretary of the Interior.*

JULY 3, 1953.

[F. R. Doc. 53-6079; Filed, July 9, 1953; 8:45 a. m.]

OREGON

NOTICE FOR FILING OBJECTIONS TO ORDER[2] RESERVING CERTAIN PUBLIC LANDS IN CONNECTION WITH NORTH FORK BIG GAME WINTER RANGE

For a period of 30 days from the date of publication of the above entitled order, persons having cause to object to the terms thereof may present their objections to the Secretary of the Interior. Such objections should be in writing, should be addressed to the Secretary of the Interior, and should be filed in duplicate in the Department of the Interior, Washington 25, D. C. In case any objection is filed and the nature of the opposition is such as to warrant it, a public hearing will be held at a convenient time and place, which will be announced, where opponents to the order may state their views and where the proponents of the order can explain its purpose, intent, and extent. Should any objection be filed, whether or not a hearing is held, notice of the determination by the Secretary as to whether the order should be rescinded, modified or let stand will be given to all interested parties of record and the general public.

ORME LEWIS, *Assistant Secretary of the Interior.*

JULY 6, 1953.

[F. R. Doc. 53-6078; Filed, July 9, 1953; 8:45 a. m.]

[1] See Title 43, Chapter I, Appendix, P. L. O. 903, *supra.*

[2] See Title 43, Chapter I, Appendix, P. L. O. 904, *supra.*

DEPARTMENT OF COMMERCE

Maritime Administration

PACIFIC TRANSPORT LINES, INC.

NOTICE OF APPLICATION

Notice is hereby given of the application of Pacific Transport Lines, Inc., seeking the written permission of the Maritime Administration under section 805 (a) of the Merchant Marine Act, 1936, as amended (46 U. S. C. 1223), to time charter the SS Hongkong Transport to Matson Navigation Company for one voyage from the Hawaiian Islands to U. S. Atlantic ports north of Hatteras for the purpose of carrying a full cargo of bagged sugar; such voyage to commence in the latter part of July 1953 and to terminate in the early part of September 1953.

Under the provisions of section 805 (a), the Maritime Administrator may not grant any such application if the Administrator finds it will result in unfair competition to any person, firm, or corporation operating exclusively in the coastwise or intercoastal service, or that it will be prejudicial to the objects and policy of the act.

Any person, firm or corporation having any interest in such application and desiring a hearing on issues pertinent to section 805 (a) should notify the Maritime Administrator on or before July 20, 1953, and should file petitions for leave to intervene in accordance with § 201.81 of the Federal Maritime Board/Maritime Administration's rules of procedure (12 F. R. 6076).

In the absence of receipt of any such request for hearing and petition for leave to intervene, the Maritime Administrator will take such action with respect to the application as may be deemed appropriate.

Dated: July 7, 1953.

By order of the Maritime Administrator.

[SEAL] A. J. WILLIAMS, *Secretary.*

[F. R. Doc. 53-6106; Filed, July 9, 1953; 8:50 a. m.]

GENERAL SERVICES ADMINISTRATION

ADMINISTRATOR OF HOUSING AND HOME FINANCE AGENCY

DELEGATION OF AUTHORITY TO NEGOTIATE CONTRACTS FOR SERVICES OF ENGINEERING AND ARCHITECTURAL FIRMS

1. Pursuant to authorty vested in me by the provisions of the Federal Property and Administrative Services Act of 1949, as amended, hereinafter called the act, authority is hereby delegated to the Administrator of the Housing and Home Finance Agency to negotiate, without advertising, under section 302 (c) (4) of the act, contracts for the services of engineering and architectural firms when such services are incident to the repair and improvement of properties and projects acquired in the program operations of the Housing and Home Finance Agency.

2. This authority shall be exercised strictly in accordance with Title III of the act.

3. The authority delegated herein may be redelegated to any officer or employee of the Housing and Home Finance Agency.

4. This delegation shall be effective as of the date hereof.

EDMUND F. MANSURE,
Administrator.

JULY 7, 1953.

[F. R. Doc. 53-6127; Filed, July 8, 1953; 5:12 p. m.]

SECURITIES AND EXCHANGE COMMISSION

EARLE W. CARDER ET AL.

MEMORANDUM OPINION AND ORDER CANCELLING BROKER-DEALER REGISTRATIONS AND DISMISSING PROCEEDINGS

JULY 2, 1953.

In the matter of Earle W. Carder, 500 Fifth Avenue, New York, N. Y.; Richard Davisson, 172-90 Highland Avenue, Jamaica, New York; Joseph F. Meehan, 4530 Broadway, New York, N. Y.

These proceedings were instituted pursuant to section 15 (b) of the Securities Exchange Act of 1934 ("the act") to determine whether the registrants named above, each of whom is a sole proprietor registered as a broker and/or dealer, willfully violated section 17 (a) of the act and Rule X-17A-5 thereunder by failing to file financial reports and, if so, whether it is in the public interest to revoke their registrations.[1]

Copies of our notices and orders for hearing were sent by registered mail to the registrants at the addresses last furnished us in their registration applications or amendments thereto but were returned to us by the Post Office Department with notations indicating that they could not be found at the addresses given.[2] None of the registrants appeared in person or was represented by counsel on the date set for hearings.

On November 28, 1942, we promulgated Rule X-17A-5 under section 17 (a) of the act providing, among other things, that every registered broker or dealer must file with this Commission a report of financial condition during each calendar year commencing with the year 1943. Promulgation of the rule was announced by publication in the FEDERAL REGISTER, by release to the press, and by distribution to persons on our mailing list. Our records show that the registrants failed to file the required reports of financial condition and accordingly we find that each of the registrants has violated section 17 (a) of the act and Rule X-17A-5 thereunder.

However, it appears that the registrants have never engaged in business as broker or dealer to any appreciable extent and that during World War II they became members of the armed forces, at which time their registrations were placed in an inactive status. Since that time none of them has advised us of any desire to become active as a broker or dealer and efforts to communicate with them for the purpose of suggesting that they withdraw their registrations have been unavailing.

Under the circumstances, we are of the opinion that the public interest will be adequately served by cancelling the registration of the registrants.

Accordingly it is ordered, That the registrations of Earle W. Carder, Richard Davisson, and Joseph F. Meehan be, and each of them is cancelled and that these proceedings under section 15 (b) of the act be, and they hereby are, discontinued.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 53-6084; Filed, July 9, 1953; 8:46 a. m.]

[File No. 54-164]

INTERNATIONAL HYDRO-ELECTRIC SYSTEM

NOTICE OF APPLICATION TO RENEW AND EXTEND FOR SIXTY DAYS BALANCE DUE ON BANK LOANS

JULY 7, 1953.

Notice is hereby given that Bartholomew A. Brickley, Trustee of International Hydro-Electric System ("IHES"), a registered holding company now in process of reorganization pursuant to sections 11 (b) (2) and 11 (d) of the Public Utility Holding Company Act ("the act"), has filed an application with the Commission for authority to renew and extend for sixty days from the due date, July 27, 1953, a balance of $1,345,000 on the loan owed by IHES to The Chase National Bank of the City of New York ("the Bank"), under circumstances as follows:

On July 27, 1950, pursuant to orders of the Commission and the United States District Court for the District of Massachusetts ("the Court"), the Trustee borrowed from the Bank $9,500,000, to be applied toward the retirement of the IHES debentures. Said loan was for a term of two years, was renewable at the option of the Trustee for one additional year, and bore interest at the rate of 2¼ percent per annum. The principal amount of the loan had been reduced to $6,360,000 on July 27, 1952, at which time it was extended, with the approval of the Commission and the Court, for one additional year. On July 1, 1953, the loan was further reduced, from the proceeds of the sale of certain system properties, to $1,665,859.20, and the Trustee expects further to reduce the principal amount to $1,345,000 as of July 27, 1953, when the loan will mature.

The trustee states that he will not have available sufficient funds with which to pay the balance of the loan at its maturity by reason of the fact that he has not yet received the proceeds from the sale of the leased properties of IHES' wholly owned subsidiary Eastern New York Power Corporation; that, although said sale has been approved by the Commission and the Court, the period for appeal will not expire until after July 27, 1953.

He further states that the Bank is willing to extend the loan for a period of sixty days from July 27, 1953, in the amount of $1,345,000 with interest at the rate of 3¼ percent per annum, with the right to prepay the loan at any time after said date; and he proposes, with the approval of the Commission and the Court, to renew and extend the loan for the principal amount and on the terms indicated.

Notice is further given that any interested person may, not later than July 17, 1953, at 5:30 p. m., e. d. s. t., request in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request, and the issues of fact or law, if any, raised by said application which he desires to controvert; or he may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C. At any time after said date said application may be granted, as filed or as amended, or the Commission may exempt such transaction as provided in Rules U-20 (a) and U-100 of the general rules and regulations promulgated under the act.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 53-6110; Filed, July 9, 1953; 8:52 a. m.]

[1] Section 15 (b) provides in part: "The Commission shall, after appropriate notice and opportunity for hearing, by order * * * revoke the registration of any broker or dealer if it finds that such * * * revocation is in the public interest and that (1) such broker or dealer * * * (D) has willfully violated any provision * * * of this title, or of any rule or regulation thereunder."

[2] Our notices and orders for hearing provided that they be published in the FEDERAL REGISTER not later than 15 days prior to the dates set for hearings. Pursuant to this provision the notices and orders were published in the FEDERAL REGISTER of May 5, 1953, No. 86, 18 F. R. 2612-14.

[File No. 70-3100]

COLUMBIA GAS SYSTEM, INC., ET AL.

NOTICE OF PROPOSED ISSUANCE AND SALE OF SECURITIES BY SUBSIDIARIES TO PARENT COMPANIES

JULY 6, 1953.

In the matter of The Columbia Gas System, Inc., Atlantic Seaboard Corporation, Amere Gas Utilities Company, Virginia Gas Distribution Corporation; File No. 70-3100.

Notice is hereby given that The Columbia Gas System, Inc. ("Columbia"), a registered holding company, its wholly owned subsidiary Atlantic Seaboard Corporation ("Seaboard"), also a registered holding company, and Amere Gas Utilities Company ("Amere") and Virginia Gas Distribution Corporation ("Distribution"), wholly owned subsidiaries of Seaboard, have filed a joint application-declaration with this Commission pursuant to the Public Utility Holding Company Act of 1935 ("the act"), designating sections 6 (b), 7, 9, and 10 of the act as applicable to their proposed transactions, which are summarized as follows:

Seaboard, a Delaware corporation, is engaged in the transmission and sale of natural gas at wholesale in interstate commerce. Amere, a West Virginia corporation, and Distribution, a Virginia corporation, are gas utility companies engaged in purchasing, transporting and selling natural gas at retail within their respective states. It is stated that, in order to complete the financing of their several construction programs for the year 1953, Seaboard will require $1,050,000, Amere $325,000, and Distribution $575,000; and it is proposed that these funds be raised by the issuance and sale of the following securities:

Seaboard will issue and sell and Columbia will purchase $1,950,000 principal amount of Seaboard's Installment Notes, providing Seaboard with the funds required to meet its own construction program and to supply the funds required by its two subsidiaries as aforesaid.

Amere will issue and sell and Seaboard will purchase $325,000 principal amount of Amere's Installment Notes.

Distribution will issue and sell and Seaboard will purchase 6,000 additional shares of Distribution's Common Stock, at the par value of $25 per share, and $425,000 principal amount of its Installment Notes.

All of said Installment Notes will be sold at face value, and they will be payable in 25 equal annual installments on February 15 of each of the years 1955 to 1979 inclusive. Interest on the unpaid principal thereof will be payable semi-annually at the rate of 4 percent per annum or such lower rate, being a multiple of ⅛ of 1 percent, as shall be not less than the cost of money to Columbia in respect to its next sale of Debentures. Such notes will be issued and sold only as cash is required to finance the several construction programs, but not later than March 31, 1954.

Applicants refer to a prior application (File No. 70-2788) now pending before the Commission wherein Columbia has requested authority to purchase from Seaboard the outstanding securities of Amere and Distribution; and they state that, if such application should be granted, Columbia would itself purchase the securities herein proposed to be issued by Amere and Distribution, and would supply the funds to them directly.

Applicants propose to supply by amendment an order of The Public Service Commission of West Virginia authorizing the issuance and sale of Installment Notes by Amere, and an order of the State Corporation Commission of Virginia authorizing the issuance of the Common Stock and Installment Notes by Distribution.

The expenses to be incurred in connection with said transactions are estimated at $3,171, including, in addition to issue taxes and incidental expenses, legal fees of $125.

It is requested that the Commission's order be expedited and made effective forthwith upon issuance.

Notice is further given that any interested person may, not later than July 17, 1953, at 5:30 p. m., e. d. s. t., request in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request, and the issues of fact or law, if any, raised by said application-declaration which he desires to controvert; or he may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C. At any time after said date said application-declaration, as filed or as amended, may be granted and permitted to become effective as provided in Rule U-23 of the rules and regulations promulgated under the act, or the Commission may exempt such transactions as provided in Rule U-20 (a) and Rule U-100 thereof.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-6085; Filed, July 9, 1953; 8:46 a. m.]

[File No. 70-3101]

COLUMBIA GAS SYSTEM, INC., AND CENTRAL KENTUCKY NATURAL GAS CO.

NOTICE OF PROPOSED ISSUANCE AND SALE OF SECURITIES BY SUBSIDIARY TO PARENT COMPANY

JULY 6, 1953.

Notice is hereby given that The Columbia Gas System, Inc. ("Columbia"), a registered holding company, and Central Kentucky Natural Gas Company ("Central Kentucky"), a wholly owned subsidiary of Columbia, have filed a joint application pursuant to the Public Utility Holding Company Act of 1935 ("the act"), designating sections 6 (b), 9 and 10 of the act as applicable to their proposed transactions, which are summarized as follows:

In order to provide $950,000 of new money required to finance its 1953 construction program, Central Kentucky proposes to issue and sell, and Columbia proposes to purchase at par or face value, the following securities: 18,000 shares of Central Kentucky's common stock, $25 par value, and $500,000 principal amount of Central Kentucky's Installment Promissory Notes. The notes will be issued and sold as required, but not later than March 31, 1954, and they will be payable in 25 equal annual installments on February 15 of each of the years 1955 to 1979 inclusive. Interest on the unpaid principal amount thereof will be payable semi-annually at the rate of 4 percent per annum or such lower rate, being a multiple of ⅛ of 1 percent, as shall be not less than the cost of money to Columbia in respect to its next sale of Debentures.

The issue and sale of the securities as proposed has been approved by the Public Service Commission of Kentucky, in which state Central Kentucky is organized and doing business.

The expenses to be incurred in connection with said transactions are estimated at $1,345 for Central Kentucky and $150 for Columbia.

Applicants request that the Commission's order be made effective upon issuance.

Notice is further given that any interested person may, not later than July 17, 1953, at 5:30 p. m., e. d. s. t., request the Commission in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request and the issues of fact or law, if any, raised by the said joint application which he desires to controvert, or may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C. At any time after said date, said application, as filed or as amended, may be granted as provided in Rule U-23 of the rules and regulations promulgated under the act, or the Commission may exempt such transactions as provided in Rule U-20 (a) and Rule U-100 thereof.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-6086; Filed, July 9, 1953; 8:47 a. m.]

INTERSTATE COMMERCE COMMISSION

[4th Sec. Application 28237]

VARIOUS COMMODITIES FROM AND TO OFFICIAL TERRITORY

APPLICATION FOR RELIEF

JULY 7, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: C. W. Boin and I. N. Doe, Agents, for carriers parties to tariffs listed in exhibit A of the application pursuant to fourth-section order No. 17220.

Commodities involved: Various commodities.

Territory: Between points in trunk-line and New England territories and points in southern territory; and between points in official territory.

Grounds for relief: Competition with rail carriers, circuitous routes.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-6087; Filed, July 9, 1953; 8:47 a. m.]

[4th Sec. Application 28238]

FEED, ANIMAL OR POULTRY, FROM CENTRAL TERRITORY TO POINTS IN TRUNK-LINE AND NEW ENGLAND TERRITORIES

APPLICATION FOR RELIEF

JULY 7, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: L. C. Schuldt, Agent, for carriers parties to his tariff I. C. C. No. 4403.

Commodities involved: Feed or feed ingredients, animal or poultry, carloads.

From: Points in central territory.

To: Points in trunk-line and New England territories.

Grounds for relief: Competition with rail carriers, circuitous routes, and to maintain grouping.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-6088; Filed, July 9, 1953; 8:47 a. m.]

[4th Sec. Application 28239]

ANIMAL TALLOW FROM DALLAS AND FORT WORTH, TEX., TO NEW ORLEANS, LA.

APPLICATION FOR RELIEF

JULY 7, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: Lee Douglass, Agent, for the Chicago, Rock Island and Pacific Railroad Company and other carriers.

Commodities involved: Inedible animal tallow, in tank-car loads.

From: Dallas and Forth Worth, Tex.

To: New Orleans, La.

Grounds for relief: Competition with rail carriers, circuitous routes.

Schedules filed containing proposed rates: Lee Douglass, Agent, tariff I. C. C. No. 758, supp. 25.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-6089; Filed, July 9, 1953; 8:47 a. m.]

[4th Sec. Application 28240]

WINDOW FRAMES FROM FORT LAUDERDALE, FLA., TO THE SOUTH

APPLICATION FOR RELIEF

JULY 7, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to schedule listed below.

Commodities involved: Frames, window, wooden, carloads.

From: Fort Lauderdale, Fla.

To: Points in southern territory.

Grounds for relief: Competition with rail carriers, circuitous routes, to maintain grouping, and to apply rates constructed on the basis of the short-line distance formula.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, I. C. C. No. 519, supp. 300.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the positicn they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-6090; Filed, July 9, 1953; 8:47 a. m.]

[4th Sec. Application 28241]

SODA ASH FROM LAKE CHARLES, LA., AND CORPUS CHRISTI, TEX., TO GEORGETOWN, S. C.

APPLICATION FOR RELIEF

JULY 7, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to Agent F. C. Kratzmeir's tariffs I. C. C. Nos. 3906 and 3967.

Commodities involved: Soda ash (other than modified soda ash), carloads.

From: Lake Charles, La., and Corpus Christi, Tex.

To: Georgetown, S. C.

Grounds for relief: Competition with rail carriers, circuitous routes.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon

a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-6091; Filed, July 9, 1953; 8:47 a. m.]

[4th Sec. Application 28242]

MERCHANDISE IN MIXED CARLOADS FROM CHICAGO, ILL., GROUP TO FLORIDA

APPLICATION FOR RELIEF

JULY 7, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. G. Raasch, Agent, for carriers parties to schedule listed below.

Commodities involved: Merchandise in mixed carloads.

From: Chicago, Ill., and points grouped therewith.

To: Jacksonville, Miami, and Tampa, Fla.

Grounds for relief: Competition with rail carriers, circuitous routes, additional routes.

Schedules filed containing proposed rates: R. G. Raasch, Agent, I. C. C. No. 752, supp. 21.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-6092; Filed, July 9, 1953; 8:48 a. m.]

[4th Sec. Application 28244]

STARCH FROM ST. LOUIS, MO., AND EAST ST. LOUIS, ILL., TO THE SOUTH

APPLICATION FOR RELIEF

JULY 7, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to schedule listed below.

Commodities involved: Starch, liquid, in tank-car loads.

From: St. Louis, Mo., and East St. Louis, Ill.

To: Mobile, Ala.; New Orleans, La.; Pensacola, North Pensacola, Cantonment, and Panama City, Fla.

Grounds for relief: Competition with rail carriers, circuitous routes, to maintain grouping, and to maintain port rate relations.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, I. C. C. No. 1062, supp. 96.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-6094; Filed, July 9, 1953; 8:48 a. m.]

[4th Sec. Application 28245]

FERTILIZER MATERIALS FROM WILMINGTON, N. C., TO POINTS IN VIRGINIA AND NORTH CAROLINA

APPLICATION FOR RELIEF

JULY 7, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: Seaboard Air Line Railroad Company.

Commodities involved: Fertilizer materials, carloads (import and intercoastal traffic).

From: Wilmington, N. C.

To: Points in North Carolina and Virginia.

Grounds for relief: Competition with rail carriers, circuitous routes, additional routes.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-6095; Filed, July 9, 1953; 8:48 a. m.]

[4th Sec. Application 28246]

CURED MEATS FROM RIO GRANDE RIVER CROSSINGS TO POINTS IN MIDWEST

APPLICATION FOR RELIEF

JULY 7, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: F. C. Kratzmeir, Agent, for carriers parties to schedule listed below.

Commodities involved: Cured meat, carloads (imported from Mexico).

From: Brownsville, Eagle Pass, El Paso, Hidalgo, Laredo, and Presidio, Tex.

To: Omaha, Nebr.; Sioux City, Iowa; St. Paul, Minn.; and Wichita, Kans.

Grounds for relief: Competition with rail carriers, circuitous routes, equalization of rates through various Rio Grande River crossings.

Schedules filed containing proposed rates: F. C. Kratzmeir, Agent, tariff I. C. C. No. 3843, supp. 40.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-6096; Filed, July 9, 1953; 8:48 a. m.]